

PERFORMANCE WORK STATEMENT
Grounds Maintenance Services
FY – 2025
Version 1

1. GENERAL. This is a non-personal services contract to provide grounds maintenance services in support of the 99th Readiness Division (RD). The Government shall not exercise any supervision or control over the contract service providers performing the services herein. Such contract services providers shall be accountable solely to the Contractor who, in turn is responsible to the Government.

1.1. DESCRIPTION OF SERVICES. The contractor shall provide all personnel, supplies, supervision, tools, materials, equipment, transportation and other items and non-personal services necessary to provide grounds maintenance services in accordance with this Performance Work Statement (PWS) except as those items specified as government furnished property and services. The contractor shall perform to the standards in the contract as well as all local, state and federal regulations.

1.2. OBJECTIVE: The result of this contract will maintain healthy grass, trees, shrubs, and plants and present a clean, neat, and professional appearance.

1.3. SCOPE. Grounds maintenance service applies to those areas identified in the site plan.

1.4. PERIOD OF PERFORMANCE. The period of performance shall be for one base year and four twelve-month option periods. The contractor shall commence work within 7 calendar days after notice of contract award.

1.5. GENERAL INFORMATION.

1.5.1. QUALITY CONTROL. The contractor shall maintain effective quality control to ensure services are performed in accordance with this PWS. The contractor's quality control is a means by which he assures himself that his work complies with the requirement of the contract.

1.5.2. QUALITY ASSURANCE. The Government shall evaluate the contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan. The plan is primarily focused on what the Government must do to ensure that the contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s). The Government will utilize the grounds maintenance inspection sheet found at Exhibit 2 to document quality of service provided.

1.5.3. HOURS OF OPERATION. The contractor is responsible for conducting business between the hours of 8:00 AM to 4:30 PM, Monday through Friday except Federal Holidays or when the Government facility is closed due to local or national emergencies, administrative

closings, or similar directed facility closings. No work shall be performed during non-duty hours, weekends or when the Government has no workforce on duty available for inspection of the Contractor's work unless prior approval has been obtained. The contractor must maintain an adequate workforce for uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons.

1.5.3.1. RECOGNIZED FEDERAL HOLIDAYS: Any reference to holidays shall be construed to mean the Government/Federal holidays listed below:

New Year's Day	1 January
Martin Luther King Day	3 rd Monday in January
Presidents Day	3 rd Monday in February
Memorial Day	Last Monday in May
Juneteenth	19 June
Independence Day	4 July
Labor Day	1 st Monday in September
Columbus Day	2 nd Monday in October
Veteran's Day	11 November
Thanksgiving Day	4 th Thursday in November
Christmas Day	25 December

When one of the above designated legal holidays falls on a Sunday, the following Monday will be observed as a legal holiday. When a legal holiday falls on a Saturday, the proceeding Friday will be observed as a legal holiday. If a holiday falls on a scheduled Contractor workday, the following proceeding workday will be used to schedule the work to be accomplished.

1.5.4. PLACE OF PERFORMANCE. The work to be performed under this contract will be performed at 1SG Adam S. Brandt Memorial U. S. Army Reserve Center (USARC), 700 E. Ordnance Rd, Baltimore, MD 21226-1790 (MD002) and SSG Isadore S. Jachman USARC, 12100 Greenspring Avenue, Owings Mills, MD 21117-1610 (MD019).

1.5.5. TYPE OF CONTRACT. The Government will award a Firm Fixed Price contract vehicle.

1.5.6. PERSONNEL. The Contractor shall provide the Contracting Officer, and the Contracting Officer Representative (COR) or Regional Facilities Operational Specialist (RFOS) via email with a list of the names of employees or alternates to be employed in performance of the work 15 calendar days of performance start date. The Contractor shall also notify the COR/RFOS with any additions or deletions to the list of employees immediately. The Government reserves the right that a COR may not be assigned. All employees must be able to communicate in English. Therefore in such a case the RFOS is the delegated point of contact to conduct oversight, review and acceptance of work. The RFOS will be responsible for review and approval of payments and is annotated in the contract award.

1.5.6.1 Employees of the contractor assigned for performance of this contract shall be capable employees with sufficient experience and training to assure compliance with the contract requirements. The employees shall be required by the Contractor to maintain themselves and

their clothing in a neat and clean manner. A fully qualified workforce shall be on board no later than the second week of the contract.

1.5.6.2. CONTRACTOR REPRESENTATIVE. The contractor shall provide an onsite contractor representative who shall be physically present during normal duty hours to conduct overall management coordination and furnish liaison with the government. The contractor representative shall be the point of contact with the government and shall have authority to act or make decisions for the contractor on all matters pertaining to this contract.

1.5.6.3. CONDUCT OF PERSONNEL. The Contracting Officer may require the contractor to remove from the job site any employee working under this contract for reasons of misconduct, security, or found to be or suspected to be under the influence of alcohol, drugs, or other incapacitating agent. Contractor employee shall be subject to dismissal from the premises upon determination by the contracting officer that such action is in the best interests of the government. The installation commander has the authority to bar individuals from the installation. Such removal from the job site or dismissal from the premises shall not relieve the contractor of the requirement to provide sufficient personnel to perform the services as required by this PWS.

1.5.7 IDENTIFICATION OF CONTRACTOR EMPLOYEES. All contract personnel working in situations where their contractor status is not obvious to third parties are required to identify themselves by wearing clearly written and visible nametags at all times, as such to avoid creating an impression in the minds of members of the public that they are Government officials.

1.5.8. ORGANIZATIONAL CONFLICT OF INTEREST. The contractor shall not employ any employee of the United States Government or the Department of Defense, either military or civilian, if such employment may create a current or subsequent Organizational Conflict of Interest (OCI) as defined in Federal Acquisition Regulation Subpart 9.5. The contractor shall notify the Contracting Officer immediately whenever it becomes aware that participation may result in any actual or potential OCI and shall promptly submit a plan to the Contracting Officer to avoid or mitigate any such OCI. The Contractor's mitigation plan will be determined to be acceptable solely at the discretion of the Contracting Officer and in the event the Contracting Officer unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the Contracting Officer may affect other remedies as he or she deems necessary.

1.5.9. SECURITY REQUIREMENTS. Contractor personnel or any representative of the contractor entering the Reserve Center shall abide by all security regulations and shall be subject to security checks. At the close of each work period, government facilities, equipment, and materials shall be secured.

1.5.9.1. KEY CONTROL. If the contractor is provided with keys to allow access to areas requiring mowing, they shall ensure they are not lost or misplaced and are not used by unauthorized personnel. The contractor shall not remove the keys from the premises nor are these keys to be duplicated. All keys that are provided to the contractor will require a logged entry signed signature and date. Keys shall be retained in possession of the janitorial staff while on the premises and returned to the COR/RFOS prior to leaving the premises including a logged

entry signed signature and date. All keys lost by Contractor's personnel shall be reported to the COR/RFOS immediately and shall be replaced at the Contractor's expense.

1.5.9.2. In the event keys, other than master keys, are lost or duplicated, the Contractor shall, upon direction of the Contracting Officer, Re-key or replace the affected lock or locks; however, the Government, at its option, may replace the affected lock or locks or perform re-keying. When the replacement of locks or re-keying is performed by the Government, the total cost of re-keying or the replacement of the lock, or locks shall be deducted from the monthly payment due to the Contractor. In the event a master key is lost or duplicated, all locks and keys for that system shall be replaced by the Government and the total costs deducted from the monthly payment due to the Contractor.

1.5.9.3. At no time shall the contractor allow anyone other than authorized contractor personnel into any locked or unlocked areas of the facility being serviced.

1.5.10. VEHICLE OPERATION. Contractor personnel operating motor vehicles used in performance of this contract shall have a valid state operator's license and shall operate all motor vehicles in accordance with policies and procedures established by the Reserve Center. The contractor's vehicles shall have an identification tag clearly visible while on site. Parking by contractor employees shall be in non-reserved spaces available to the public.

1.5.11. CONSERVATION OF UTILITIES. The Contractor shall instruct employees in utility conservation practices. The Contractor shall be responsible for operating under conditions, which preclude the waste of utilities, which shall include, but not be limited to the following and other like items:

- a. Lights shall be used only in areas where and at a time when work is actually being performed.
- b. Heating, Ventilation and Air Conditioning controls shall not be adjusted by the Contractor's employees.
- c. Water faucets and valves shall be turned off after use.

1.5.12. SAFETY. The contractor shall maintain a safe working environment to prevent accidents and preserve the life and health of contractor personnel and Government personnel. The Contractor shall instruct employees in appropriate measures as specified by the applicable provisions of the Occupational Safety and Health Act, 1970, PL 91-596 (84 Stat 1590). The Contractor's employees shall not place equipment in traffic lanes or other locations in such a manner as to create safety hazards.

1.5.12.1. The Contractor shall protect the safety and health of employees and of members of the public and minimize dangers from all hazards of life and property and shall comply with all Health, Safety, and Fire Protection regulations and requirements (including reporting requirements) of the Army and Safety and Health regulations issued by the Secretary of Labor in 26 CFR (1910) and any subsequent amendments. The Contractor shall permit safety inspections of all work being performed under this contract.

1.5.12.3. The information shall be recorded with the COR/RFOS and Contracting Officer within 24 hours of time of notification of occurrence to the contractor by the employee.

1.5.13. INTERFERENCE WITH GOVERNMENT BUSINESS. The Contractor shall schedule and arrange work so as to cause the least interference with the normal occurrence of Government business and a mission. In those cases where some interference may be essentially unavoidable, the Contractor shall be responsible to make every effort to minimize the impact of the interference and inconvenience of the customer.

1.5.14. PROTECTION OF GOVERNMENT PROPERTY

1.5.14.1. The Contractor shall assume full liability and responsibility for any loss or damage to Government property caused by his operations and shall assume full responsibility for any and all damages or claims for damage for injury to persons, property or equipment which might result from any service performed under this contract.

1.5.14.2. The Contractor shall return areas damaged as a result of work under this contract to their original condition, to include painting, refinishing, repairing or replacement of any/all curbing, soil, lawn, shrubs, fences, gates and handrails, if necessary.

1.5.15. ENVIRONMENTAL PROTECTION AND DISPOSAL FACILITIES:

1.5.15.1. The contractor shall dispose of, off the installation, all refuse and debris collected in accordance with this contract at a landfill or disposal site established and operated in accordance with the applicable Federal, State, and local laws and regulations. The contractor shall provide to the Contracting Officer the name, address and location of landfill and or other disposal sites at the pre-performance conferences and when changes occur.

1.5.15.2. The contractor shall comply with all Federal, State, and local laws and regulations regarding environmental protection. In performing this contract, the contractor shall not engage in any practice which places or might place the Government in violation of any law or regulation.

1.5.16. OTHER REQUIREMENTS.

1.5.16.1. The Contractor shall at all times observe and comply with, and shall cause all the agents and employees of the Contractor to observe and comply with, all such existing and future laws, regulations, ordinances, by-laws, orders and decrees; and shall protect and indemnify the 99th Reserve Support Command against any claim or liability arising from or based upon the violation of any such laws, regulations, ordinances, by-laws, orders and decrees, whether by the Contractor or its agents or employees.

2. DEFINITIONS. As used throughout this contract, the following terms shall have the meaning set forth below.

2.1. CONTRACTING OFFICER. The Contracting Officer is a person with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings. The term includes certain authorized representatives of the Contracting Officer acting within the limits of their authority as delegated by the Contracting Officer.

2.2. CONTRACTOR. The term Contractor as used herein refers to both the prime Contractor and any subcontractors. The prime Contractor shall ensure that his/her subcontractors comply with the provisions of the contract.

2.3. CONTRACTOR REPRESENTATIVE. A foreman or superintendent assigned in accordance with paragraph 1.5.6.2.

2.4. REGIONAL FACILITIES OPERATIONAL SPECIALIST (RFOS). A designated individual who shall have the primary responsibility for assuring that all supplies, service or workmanship presented to or performed for the Government meet all conditions of the contract.

2.5. CONTRACTING OFFICER REPRESENTATIVE (COR). The Government employee designated by the Contracting Officer to be responsible for monitoring of Contractor performance.

2.6. PERFORMANCE REQUIREMENTS SUMMARY (PRS). Identifies the key performance indicators of the contract that will be evaluated by the Government to assure contract performance the contractor meets standards.

2.7. QUALITY ASSURANCE SURVEILLANCE PLAN (QASP). An organized written document used for quality assurance surveillance. The document contains specific methods to perform surveillance of the contractor for each item of the Performance Requirements Summary.

2.8. QUALITY ASSURANCE (QA). A Method used by the Government to provide some measure of control over the quality of purchased goods and services received.

2.9. QUALITY CONTROL (QC). A method used by the Contractor to control the quality of goods and services received.

2.10. DISPOSAL. Disposal is the process of spreading and covering in sanitary fills, spreading and covering in landfills, and dumping in public dumps, or other solid waste disposal facility.

2.11 EDGING. The vertical cutting of the grass that goes into the soil. Along all mowing lines to include but limited to edging of sidewalks, gardens, and walkways.

2.12 TRIMMING: Horizontal cutting of grass. Along all mowing lines to include but not limited to trimming of sidewalks, curbs, gardens, walkways, fence lines, retention ponds, solar panels and culverts.

3. GOVERNMENT FURNISHED ITEMS AND SERVICES. The Government will provide the property and services listed below.

3.1. UTILITIES:

3.1. Government facilities shall not be used to power mowers, trimming equipment or other small maintenance equipment.

3.1.2. Water from existing sources.

4. CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES.

4.1. GENERAL. The Contractor shall furnish all supplies, equipment, facilities and services required to perform work under this contract that are not listed under Section 3 of this PWS. Material, equipment, and supplies provided shall be of acceptable commercial grade and quality. Unsafe or unsatisfactory equipment will be replaced by the contractor.

4.1.2 Site Visit. It is urged and expected to have vendors conduct a site visit prior to submitting a quote/offer for the requirement as the Maps are always revised and the scope of the requirement can't be properly ascertained without a site visit. There will be an initial and alternate site visit for this requirement see instructions to offeror for details. The contractor is responsible for obtaining appropriate site maps and solicitation prior to visit, none will be provided at the site visit. The site maps provided are estimates only and MUST be verified by the contractor.

5. SPECIFIC TASKS.

5.1. The contractor shall provide the grounds maintenance services described herein. A description of the areas to receive grounds maintenance services is included in the applicable site plan.

5.2. Basic services shall be performed at the locations identified in the site plan. Verification of services are to be established with the RFOS 5 calendar days after contract award. Any equipment (including waste containers) moved while performing basic services shall be returned to their original position.

5.3 SCHEDULE OF WORK. The contractor shall provide grounds maintenance services for the areas set forth on site map. The contract period for grounds maintenance service is March through November in the Southern Region, which includes Maryland (MD), Virginia (VA), and West Virginia (WV), and April through November in the Northern Region, includes Maine (ME), New Hampshire (NH), Vermont (VT), Massachusetts (MA), New York (NY), New Jersey (NJ), Pennsylvania (PA), Rhode Island (RI), Connecticut (CT), and Delaware (DE), of the respective fiscal year indicated in the contract, unless otherwise approved by the contracting officer. **Prior to commencing any work, the Contractor shall submit a schedule via email of operations to the COR/RFOS for approval.** The mowing schedule shall be subject to change in order that the contractor's operations do not conflict or otherwise disrupt normal operations

of the government in the facility involved. In the event the mowing is not necessary when scheduled, the COR/RFOS will contact the contractor 48 hours prior to the work scheduled. The cancelled mowing will be credited and if necessary rescheduled to another date at the discretion of the COR/RFOS. A PRE WORK Meeting between COR/RFOS, Contracting Officer and vendor will outline all scheduling of grounds maintenance to include rescheduling due to inclement weather or event at facility.

5.4. MAINTAIN GROUNDS

5.4.1. MOWING. All grass cutting equipment will arrive at the site with mowing blades in a sharp condition. Mowing shall include areas identified in the site map to include but not limited to embankment, parking lots, retention ponds, drain basins, displays and isolated areas. Contractor's responsibility to maintain all areas to the commercial standards. This includes but not limited to overgrown areas that have not been maintained. To bring the area up to the commercial standard, the contractor is responsible to complete as specified on maps at no additional cost. The methodology to bring the property up to the standard is up to the contractor and not dictated by the Government. During the growing season grass shall be cut to a height no higher than three (3) inches and no less than two (2) inches. All clumps and/or clippings must be removed within four (4) hours after being cut. The Contractor shall remove and dispose off site, at no extra cost to the Government. **Grass will be cut approximately every 14 days or as directed by the COR/RFOS.** Routine policing of the grounds will be conducted during mowing services and all site areas, walkways, and parking areas shall be kept free of debris/trash/clippings by either sweeping or blowing and disposed. **Contractor will not blow clippings, debris or trash into the retention ponds or inflow/outflow.** The contractor is responsible to remove all branches or limbs (up to 2 inches in diameter) from the areas prior to mowing. The branches and limbs shall be removed off site. Government dumpster will NOT be used for disposal.

5.4.2. EDGING: When applicable and specified as line item The edging will be completed within the 30 days of the start of the spring season and once in the fall cutting season, for which equates to a quantity of 2, or as prescribed by the COR/RFOS. Edging will consist of running a specialty edging machine along the edge of the grass that meets pavement or sidewalks providing a clean edge to define the two areas.

5.4.3 TRIMMING: When applicable and specified as line item. All areas of the site must be properly trimmed during the period of performance as specified in PWS 5.3 schedule of work, or as directed by the COR/RFOS. Trimming shall occur once a month within the Northern Region (CT, DE, ME, MA, NH, NJ, NY, PA, RI & VT) from April to November which equates to a quantity of 8. Trimming shall occur once a month within the Southern Region (MD, VA & WV) from March to November which equates to a quantity of 9. Trimming shall include but not limited to all walks, both sides of fence lines, 10 ft inside and outside of fence line to easement of 99th property, plazas, roadway curbs adjoining turf areas, retention ponds (to include slope areas if present), culverts and photovoltaic (solar panels) shall be cleanly trimmed and consistently maintained throughout the growing season to maintain a commercial standard. Contractor will remove all debris and discard offsite.

5.4.4 SPRING and FALL CLEANUP: When applicable and specified as line item. All discarded materials to include but not limited to: paper, bottles, cans, branches and other refuse will be removed from the grounds and fence lines. Contractor will remove and discard offsite. Leaves will be raked or swept from all areas and removed from outdoor stairwells, fence lines, paved areas, all shrubs, trees and hedges. All fence areas shall be cleared of all vegetation, weeds, poison ivy, etc., whether rooted inside or outside the fence, a minimum of 6 feet on each side of fence or as indicated on the site plan. Clearance of vegetation will be accomplished by cutting and pulling operations only. No chemical removal treatment or techniques shall be used. This work shall be completed two times per year, once during the first month of the grounds season and once at the end (March/April and November).

5.4.5 Verification of services – The contractor shall submit accurate, clear and precise photographs of the service areas prior and upon completion of work within 24 hours from date of service to the appropriate COR/RFOS' official email. It's the contractor's responsibility to obtain the email address within 5 calendar days after contract award. The contractor's invoices will not be processed if photographs are not complete as required. Submission of signed checklist (Exhibit 2, para 8) will accompany all invoices into WAWF. WAWF invoice will be rejected for failure to provide completed checklist. Invoices should detail contract and MOD number, CLIN line item with Quantity and unit price.

5.4.6 SERVICE CONTRACT REPORTING. When applicable and specified as line item. Contractors will report manpower data relating to the performance of services contracts into SAM.GOV, consistent with existing service contract reporting requirements under the FAR Subpart 4.17-Service Contracts Inventory.

6. ANTITERRORISM (AT) AND OPERATIONS SECURITY (OPSEC)

6.1. AT LEVEL 1 TRAINING. *This standard language is for contractor employees with an area of performance within an Army controlled installation, facility or area.* All contractor employees, to include subcontractor employees, requiring access Army installations, facilities and controlled access areas shall complete AT Level I awareness training within 30 calendar days after contract start date or effective date of incorporation of this requirement into the contract, whichever is applicable. The contractor shall submit certificates of completion for each affected contractor employee and subcontractor employee, to the COR/RFOS or to the contracting officer, if a COR/RFOS is not assigned, within 5 calendar days after completion of training by all employees and subcontractor personnel. AT level I awareness training is available at the following website: <http://jko.jten.mil> or non-CAC card holders - <http://jko.jten.mil/courses/at11/launch.html>

6.2. ACCESS, GENERAL PROTECTION, AND SECURITY POLICY AND PROCEDURES. Contractor and all associated sub-contractors employees shall provide all information required for background checks to meet installation access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services or

Security Office. Contractor workforce must comply with all personal identity verification requirements (FAR clause 52.204-9, Personal Identity Verification of Contractor Personnel) as directed by DOD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in contractor security matters or processes.

6.2.1 For contractors that do not require CAC, but require access to a DoD facility or installation. Contractor and all associated sub-contractors employees shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification Index (NCIC-III) and Terrorist Screening Database (TSDB) (Army Directive 2014-05/AR 190-13), applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by government representative), or, at OCONUS locations, in accordance with status of forces agreements and other theater regulations.

6.3 iWATCH TRAINING. The contractor and all associated subcontractor employees shall brief all employees on the local iWATCH program (training standards are provided by COR/RFOS). This locally developed training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the COR/RFOS. This training shall be completed within 30 calendar days of contract award and with 30 calendar days of new employees commencing performance with the results reported to the COR/RFOS not later than 5 calendar days after contract award.

6.4 OPSEC TRAINING. Per Army Regulation 530-1, Operations Security, new contractor employees must complete Level I OPSEC training within 30 calendar days of reporting for duty and annually thereafter.

7. ATTACHMENT/TECHNICAL EXHIBIT LIST

7.1 EXHIBIT 1 - PERFORMANCE REQUIREMENTS SUMMARY

Performance Objective	Standard	Performance Threshold	Method of Surveillance
All mowing/grass cutting services completed in accordance with PWS paragraph 5.4.1	AR 420-1	100% with no more than one valid customer complaint every three (3) months.	Random Sampling, Periodic Surveillance and/or Validated Customer Complaint

All grass clippings removed in a timely manner in accordance with PWS paragraph 5.4.1	AR 420-1	100% with no more than one valid customer complaint every three (3) months.	Random Sampling, Periodic Surveillance and/or Validated Customer Complaint
All trimming/edging services completed in accordance with PWS paragraph 5.4.2 and 5.4.3	AR 420-1	100% with no more than one valid customer complaint every three (3) months.	Random Sampling, Periodic Surveillance and/or Validated Customer Complaint
All spring and fall cleanup and tree trimming completed in accordance with PWS paragraph 5.4.4, 5.4.4.5 and 5.4.4.6	AR 420-1	100% with no customer complaint per task	Random Sampling, Periodic Surveillance and/or Validated Customer Complaint

7.2 EXHIBIT 2 – GROUNDS MAINTENANCE INSPECTION CHECKLIST

Contract Number: _____

Location: _____

Instructions: Check the box that applies, make comments as needed and have the Regional Facilities Operation Specialist (RFOS)/Contracting Officer's Representative (COR) and Contractor Representative sign at the bottom. The checklist must be completed on a monthly basis and submitted with monthly invoice. Payment will NOT be approved without completed checklist.

Were the following in accordance with the Performance Work Statement (PWS) and in accordance with the standards outlined in the Performance Requirements Summary (PRS)?

<u>Work Requirement</u>	<u>Service Completed</u>	<u>Satisfactory</u>	<u>Unsatisfactory</u>	<u>Comments</u>
Spring and Fall Clean up				
Mowing				
Grass Clipping Removal				
Trimming/Edging				

Retention Pond				
----------------	--	--	--	--

Additional Comments

Signature of COR/RFOS

Date

Signature of Contractor's Representative

Date

DRAFT